

Dharmendra Singh Chauhan v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 16 September 2011 · WRIT - C No. 53741 of 2011 · **Writ disposed; petitioner relegated to CGRF under clause 4.6(f).**

HEADNOTE

A deposit of Rs. 87,777 demanded because a distribution pole stood on the petitioner's land was not decided on merits. The High Court directed the petitioner to apply to the Consumer Grievance Redressal Forum, which shall call the Electricity Department, Nagar Nigam and Gram Panchayat and finalise the issue under clause 4.6(f) of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Dharmendra Singh Chauhan, approached the High Court complaining that although electricity was to be distributed among various consumers, a pole had been installed on his land and he had been called upon to deposit Rs. 87,777. Counsel for the respondents submitted that the figure was only an estimate and was not directed to be paid by the petitioner alone, but by all consumers.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6(f)

pole on consumer land / shared deposit / CGRF

HOLDING

A writ court will not decide on merits a dispute over a deposit demanded because a distribution pole has been installed on the petitioner's land, where the licensee says the estimate is payable by all consumers and not by the petitioner alone. The petitioner is to apply to the Consumer Grievance Redressal Forum within seven days of obtaining a certified copy; the Forum shall call representatives of the Electricity Department, Nagar Nigam and Gram Panchayat and finalise the issue under clause 4.6(f) of the U.P. Electricity Supply Code, 2005 in their presence within one month thereafter. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHO MUST BEAR THE RS. 87,777 DEPOSIT FOR THE POLE INSTALLED ON THE PETITIONER'S LAND

Left to the CGRF to finalise under clause 4.6(f) after hearing the Electricity Department, Nagar Nigam and Gram Panchayat. ¶ 1